

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.243	0.118	0.009	0.196	0.244
Trial Fee-Shifting	0.252	0.137	0.010	0.215	0.268
Complete Fee-Shifting	0.335	0.067	0.063	0.265	0.274